

BC703981 BC703981

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-25

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Case Number: BC703981 Hearing Date: August 25, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Dorian Arevalo

;

Plaintiffs,

vs.

JOse Molina

, et al.,

Defendants.

Case No.:

BC703981

Hearing Date:

August 25, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Order

to Show Cause Why the Court Should NOT Dismiss This Action Pursuant to Code

of Civil Procedure sections 583.310 and 583.360

Order to Show

Cause Why the Court Should Not Dismiss This Action Pursuant to Code of Civil

Procedure Sections 583.310 and 583.360

No response to this Order

to Show Cause was filed.

DISCUSSION

On

June 2, 2026, the court, on its own motion, set an Order to Show Cause why the

court should not dismiss this action because it has not been brought to trial

within five years after the action was commenced against the defendant,

pursuant to Code of Civil Procedure sections 583.310 and 583.360, for hearing

on August 25, 2026, at 10:00 a.m., in Department 513. (June 2, 2026 order, p. 3:5-9.)

The court ordered that any response to the Order to Show Cause shall be filed and served no later than nine court days before the hearing. (June 2, 2026 order, p. 3:9-10.)

No

response to the Order to Show Cause has been filed by any party.

"An

action shall be brought to trial within five years after the action is commenced against the defendant." (Code Civ. Proc., § 583.310.) "An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article." (Code Civ. Proc., § 583.360, subd.

(a).) "The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute." (Code Civ. Proc., § 583.360, subd. (b).) The five-year deadline to bring an action to trial was extended by six months for civil cases filed on or before April 6, 2020. (Cal. Rules of Court, Emergency Rules Related to COVID-19, rule 10, subd.

(a).

This action was filed

on April 26, 2018. On May 9,

2019, Defendant Jose Molina ("Defendant") filed a Notice of Stay of Proceedings

and attached a notice of removal of action to the United States District Court that he had also filed on May 9, 2019. On May 22, 2019, the court vacated the trial and Final Status Conference set for that date. On May 22, 2019, the order of remand issued by the United States District Court was filed with this court. Thus, this court was divested of jurisdiction by Defendant's removal to federal court for 13 days (i.e., from May 9 to May 22, 2019).

On August 28, 2019, the court's minute order states: "Review of case records reflects that there is no remand of this case from Federal Court. The entire action is determined to be disposed of and completed." Thereafter, the parties did not take any action in this case or call to the court's attention that the United States District Court had issued an order of remand until Defendant filed his motion to release interpled funds of \$18,862.00 held in court trust account on December 9, 2025. Thus, no party took any action or filed any documents with this court in this case for over six years after the case was remanded to this court.

The deadline to bring this action to trial was Sunday November 6, 2023, which is five years, six months, and thirteen days from April 26, 2018, extended to Monday, November 7, 2023. (Code Civ. Proc., § 12 [extension of time to act when last day falls on a holiday].)

Although

the court pointed out in its June 2, 2026 order that the court is required to

dismiss this action pursuant to Code of Civil Procedure section 583.360, unless

the parties stipulate to extend the time within which the action must be

brought to trial pursuant to section 583.330, the parties have not filed such a

stipulation. None of the parties has

filed a response to the Order to Show Cause.

Thus,

the court is required to dismiss this action pursuant to Code of Civil Procedure

section 583.360.

ORDER

The court, on its

own motion, orders that this action is dismissed pursuant to Code of Civil

Procedure, sections 583.310 and 583.360.

The court directs

the clerk to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 25, 2026

Robert B. Broadbelt III

Judge of the Superior Court